

DENFORD BUSINESS ATTORNEYS (DBA)

Solutions • Value • Growth

-Full Service Real Estate Law Firm-

If real estate is at the centre of your business – whether you're acquiring your first commercial property, structuring a multi-project development, or managing a growing portfolio – you need more than a conveyancer. You need a legal partner who thinks like an investor.

Denford Business Attorneys (DBA) is a Harare-based boutique firm built exclusively around real estate and commercial law. We combine deep technical specialisation with commercial pragmatism – translating complex legal issues into tangible business advantages across the full property lifecycle.

Our practice rests on a tripod of Real Estate, Compliance Advisory, and Business Law, supported by complimentary practice areas of Family Law, Estate Planning, and Dispute Resolution. We build value, structure robust solutions, and foster sustainable growth.-We are your thinking partners to our clients' businesses.

VISION

To be the legal practice of choice for Real Estate—delivering meticulously crafted, bespoke solutions with exceptional personal attention and discretion.

MISSION

To provide commercially viable, value-centric legal solutions that optimize operations and fuel growth. We translate legal complexity into business advantage.

OUR CORE VALUES

- Excellence & Efficiency: Meticulous work delivered on time. Good enough never is.
- Client Partnership: Long-term relationships, not transactions. Your success is ours.
- Integrity: Unshakeable ethics. Our reputation is our most valuable asset.
- Innovation: Embracing technology to deliver faster, smarter, and more efficiently.
- Commercial Acumen: Legal strategy serving business goals. We think like entrepreneurs.

OUR PRACTICE: Where Strategy Meets Specialization

Our services are structured under three interconnected pillars, designed to cover the full spectrum of real estate and commercial transactions ensuring seamless, expert advice across all facets of client work.

1. Real Estate and Construction Law
 2. Compliance Advisory
 3. Business Law
- Complementary: Family & Estate Planning | Dispute Resolution

PILLAR 1: REAL ESTATE & CONSTRUCTION LAW

For most of our clients, real estate is their most significant asset – a family home, a commercial portfolio, or a multi-million-dollar development site. The stakes are too high for generic legal advice. At DBA real estate is not one of many practice areas, but the entire practice."

Navigating Zimbabwe's property market demands understanding land governance, municipal regulations, and market practice.

A. Conveyancing & Property Transactions

We manage the full mechanics of property transfer, ensuring strict compliance with all regulatory requirements

- Property Transfers: Acting for purchasers or sellers, we manage the entire process—from instruction to rates clearance and deeds office lodgement—for a seamless conclusion.
- Bond Registrations & Cancellations: Preparing and managing mortgage bonds for financial institutions and private lenders, and handling bond cancellations on sales or refinancing.
- Title Deed Investigations & Due Diligence: Comprehensive Deeds Office and municipal searches to verify ownership, uncover caveats or servitudes, and confirm legal marketability.
- Notarial Services: Drafting and registering notarial bonds, long-term leases (over 10 years), and servitudes; notarial certification where required.

B. Asset Acquisition & Disposal

Beyond standard transfers, we advise on strategy and structure for high-value or complex portfolios—including development sales, institutional portfolio acquisitions, and due diligence to uncover off-balance-sheet liabilities. We ensure the transaction structure (share or asset sale) optimizes your tax and risk profile.

C. Development Planning & Regulatory Approvals

We act as the interface between developers and regulators, guiding clients through zoning laws, subdivision permits, and development applications.

- Subdivision & Consolidation Consents: Obtaining council permissions to restructure land parcels.
- Special Consents & Use Permissions: Securing rights for specific uses (e.g., residential to commercial conversion).
- Environmental Impact Assessments (EIA): Coordinating with consultants to ensure EMA compliance and secure necessary clearances.

D. Development Project Structuring

We structure the legal frameworks that make complex projects viable and protect all parties' interests.

- Joint Venture (JV) Agreements: Bespoke agreements between landowners and developers, covering profit-share, decision-making, and exit strategies.
- Development Management Agreements: Defining the role, authority, and fees of a development manager.
- Bespoke Co-Ownership Structures: Creating SPVs or trusts for co-owned development sites, ensuring clarity on funding, risk, and profit distribution.

E. Property Sales & Marketing Structuring

We advise developers and estate agents on optimal legal structures for bringing properties to market.

- Off-the-Plan Contract Drafting: Robust, fair sale agreements complying with consumer protection laws while protecting developers on delays or plan changes.
- Sectional Title & Share Block Schemes: Advising on scheme establishment, drafting conduct rules, and ensuring statutory compliance; assisting with conversions to sectional title.
- Owners Association Governance: Drafting constitutions and governance frameworks for homeowners' associations.

F. Construction & Engineering Law

Bespoke drafting and negotiation of construction contracts (including FIDIC-based agreements), subcontractor agreements, and consultant appointments.

G. Real Estate, Project Finance & Security

For financiers and borrowers, we ensure security is perfected and risk minimized. We act for banks, private lenders, and microfinance institutions in preparing and registering mortgage bonds, cessions, and notarial bonds. For borrowers, we review finance agreements for fairness and proportionate security. For project finance, we advise on conditions precedent, financial close documentation, and coordinate legal components.

By integrating these services, DBA provides end-to-end support across the entire property lifecycle.

PILLAR 2: COMPLIANCE ADVISORY

We are built on a fundamental conviction: regulatory adherence is not an afterthought but a central pillar of successful property investment. A robust compliance framework drives sustainable growth, operational efficiency, and long-term reputational security.

We work across Zimbabwe's property sector—with developers, estate agents, contractors, property owners, and investors—ensuring regulatory requirements never derail legitimate business goals.

The Environment

Zimbabwe's property sector operates in a VUCA landscape (Volatility, Uncertainty, Complexity, Ambiguity). The regulatory framework is uniquely difficult—dated legislation remains in force while transformative new laws emerge. Navigating this paradox demands constant vigilance.

The Cost of Non-Compliance

- Transaction Failures: Deals collapse from unresolved compliance issues.
- Project Delays & Cost Overruns: Regulatory hurdles derail timelines and budgets.
- Legal & Financial Penalties: Fines, "regularisation fees," and demolition orders.
- Reputational Damage: A single failure can permanently tarnish a brand.

Our Approach: Precision, Practicality, Partnership

We embed ourselves in the specifics of each project and regulatory challenge, combining current knowledge with clear, actionable guidance. The result is legally sound, operationally useful counsel that enables confident decision-making.

What We Do: Comprehensive Compliance Solutions

We operate as an outsourced legal and compliance department, structured around preventative law—neutralizing vulnerabilities before they escalate.

1. Regulatory Navigation

- Challenge: You cannot comply with unknown regulations.
- Solution: We monitor parliamentary debates, statutory instruments, acts, bylaws, and local authority resolutions in real time, alerting clients to changes before they become enforceable.

2. Municipal Compliance

- Challenge: Local authorities have unique, often opaque systems. A single clearance delay can cascade through an entire project.
- Solution: We manage the entire municipal compliance process end-to-end, streamlining interactions and expediting critical clearances to keep your project on schedule and within budget.

3. Risk and Compliance Audits for Property Portfolios

- Challenge: Hidden vulnerabilities—title disputes, zoning contraventions, drafting gaps—can surface years later, creating significant exposure.
- Solution: We conduct comprehensive, pre-emptive audits of title documentation, zoning compliance, leases and contracts, identifying and neutralizing risks before they crystallize.

4. Construction and Development Compliance

- Challenge: Development projects face stage-specific regulatory requirements across the entire lifecycle; failure at any stage can halt progress.
- Solution: We provide end-to-end guidance from conception to completion, ensuring each requirement is satisfied before it becomes a bottleneck.

5. Tax Compliance

- Challenge: New fiscal measures carry significant implications for transactions and property holding structures.
- Solution: We advise on tax implications, ensuring full compliance while strategically optimizing your position—satisfying obligations without unnecessary tax burden.

PILLAR 3: BUSINESS LAW

Comprehensive legal support for your enterprise at every stage.

Corporate Advisory & Governance

- **Mergers & Acquisitions (M&A):** In real estate, M&A offers tax-efficient portfolio acquisition but transfers all underlying liabilities. We analyse share vs. asset sales, weighing tax, cost, and risk. We protect buyers and sellers, and advise on post-merger integration for seamless transitions.
- **Investment & Fund Structuring:** Investors need secure, tax-efficient vehicles. We create bespoke agreements for private syndicates, establish SPVs to ring-fence project risk, and advise on fund infrastructure for multi-project vehicles.

- **Corporate Governance & Board Advisory:** Growing businesses face complexity. We draft board charters and policies, advise directors on fiduciary duties, and provide company secretarial services ensuring statutory compliance.

Commercial & Contracts

- **Supply & Services Agreements:** Drafting clear contracts with architects, engineers, and suppliers—focusing on scope, deliverables, milestone payments, and liability.
- **Commercial Leases:** Tailored agreements addressing fit-outs, expense recoveries, renewal options, and assignment rights.
- **Contractor & Consultant Appointments:** Translating project briefs into robust appointments, adapting standard forms (e.g., FIDIC) to local law.

Employment & Labour Law

- **Employment Contracts & Policies:** Drafting compliant contracts and policies aligned with the Labour Act.
- **Workplace Disputes:** Managing disciplinary hearings, grievances, and retrenchments with procedural fairness.
- **Labour Law Audits:** Reviewing employment practices to mitigate risks before disputes arise.

Tax & Structuring

- **Tax Advisory (Cross-Border & Corporate):** Tax drives deal structure. We advise on tax-efficient holding of Zimbabwean property, analyse CGT, VAT, and Transfer Tax implications, and represent clients before ZIMRA in audits and appeals.

THE DBA ADVANTAGE: THE DUE DILIGENCE DATABASE"

In Zimbabwe's complex regulatory environment, standard due diligence misses what isn't immediately visible. Our proprietary Due Diligence Database codifies years of transactional knowledge – enabling faster reviews, systematic anomaly detection, and institutional memory that deepens with every matter. For our clients, this means fewer surprises and faster, more confident decision-making.

- **Risk-Focused, Accelerated Reviews:** We deliver clear, decision-ready assessments—coordinating legal, regulatory, and financial due diligence into one integrated picture.

COMPLEMENTARY PRACTICE AREAS

Beyond our core pillars, DBA offers specialized capabilities that extend and protect the value we build—ensuring your commercial interests and personal legacy are seamlessly integrated.

Estate Planning & Family Law

For entrepreneurs, business assets and personal wealth are inseparable. A property portfolio is the foundation of a family's future. The challenge is protecting these assets from marriage, divorce, or death, while ensuring smooth, tax-efficient transfer to the next generation.

- **Comprehensive Estate Planning:** We design plans that minimize estate duty, ensure smooth succession, and utilize trusts strategically to protect assets.

- Family Law: Drafting antenuptial and postnuptial agreements protecting pre-acquired assets; robust representation in divorce, minimizing business disruption.
- Wills & Estate Administration: Bespoke wills reflecting your life's complexity; professional executor services managing the entire administration process.

The Integration Point: We align your shareholder agreements, trust deeds, and estate planning documents—connecting the dots so your commercial and personal legacies form one cohesive, protected whole.

Dispute Resolution

In real estate, disputes arise—tenants default, contracts are breached, boundaries contested. Litigation is expensive and public. The better approach is strategic.

- Strategic Litigation: When court is unavoidable, we provide commercially minded representation. Core areas: evictions, breach of contract, specific performance, property disputes.
- Alternative Dispute Resolution (ADR): We champion arbitration, mediation, and strategic negotiation—saving time, cost, and stress.

The Integration Point: Our dispute resolution capability protects the value we help build. Because we understand the deal, we advise you whether to fight, settle, or walk away.

Notary Public Services

Many property and business documents require notarization. Clients often source a notary separately, creating friction.

- Notarial Bonds: Drafting and registering bonds over movable property as finance security.
 - Authentic Acts: Preparing notarial deeds, including long-term leases, servitudes, and antenuptial contracts.
 - International Certification: Notarized copies, powers of attorney, and affidavits for overseas use.
- Strategic Value: A natural extension of our conveyancing and corporate practice, enhancing client convenience and capturing revenue.

THE CLIENT EXPERIENCE SYSTEM: OUR OPERATIONAL EDGE

At DBA, client service is a discipline embedded in every process—the engine converting expertise into measurable outcomes.

- A. Matter Blueprinting: Every new matter receives a customized "Matter Blueprint" within 48 hours, setting out milestones, timeline, team, communication protocol, and fees. You know exactly what to expect.
- B. Proactive Status Updates: Technology-driven CRM workflows trigger monthly status communications. Major milestones prompt a partner call. Every communication is acknowledged within 4 business hours with a specific revert time.
- C. The No-Jargon Rule: Every written opinion includes a one-page "Executive Summary for Decision-Making" in plain English—translating complexity into clear risks, options, and recommendations.

- D. Quarterly Legal Health Check: Retainer clients receive structured quarterly engagement covering regulatory changes, contract renewals, compliance gaps, and succession alignment. Your outsourced legal department, but better.
- E. Network Access: We connect clients to our vetted ecosystem of estate agents, developers, surveyors, accountants, architects, engineers, and financiers—professionals matching our quality standards.

OUR UNIQUE VALUE PROPOSITION

- Niche Mastery with Commercial Pragmatism: Our lawyers think like entrepreneurs, explaining not just "what the law says" but "what this means for your investment." Compliance becomes competitive advantage.
- The Client Experience System: Matter Blueprinting, proactive updates, communication excellence, and Quarterly Legal Health Checks—our systems turn promises into consistent, measurable delivery. Technology-enabled efficiency lets us focus on clients.
- Proactive Partnership & Legacy Mindset: We align your legal strategy with long-term objectives—ensuring business structure, estate plan, and compliance posture point in the same direction.

WHO WE SERVE

- TIER A — Institutional & Commercial: Real Estate Developers, Private Equity Funds, Construction Firms, Financial Institutions, Estate Agents, Foreign Direct Investors, Government Entities.
- TIER B — Business & Professionals: High-Net-Worth Individuals, Family-Owned Businesses, SMEs, Commercial Real Estate Players, Professionals seeking asset protection.
- TIER C — Individuals: First-time property buyers, professionals with estate planning needs, those navigating property disputes or family law matters.

HOW WE WORK: OPERATIONAL STRUCTURE

DBA is deliberately lean and partner-centric. Every matter is directly overseen by a Partner.

- Partner-Led Delivery: You engage a partner; a partner works with you—from instruction to conclusion.
- Boutique Agility: A focused team, augmented by specialist external counsel only when complexity demands it. Responsiveness with expanded reach.
- Integrated Advice Across All Three Pillars: Seamless advice across Real Estate, Compliance, and Business Law—without briefing separate firms.
- Technology-Enabled Efficiency: Best-in-class practice management (Clio or equivalent), cloud-based document management, automated workflows, and our developing Due Diligence Database. Enterprise-grade cybersecurity.

Denford Chatendeuka

Founding Partner

LLB (Hons) • BSc Economics (Hons) • MBA (Finance) • Registered Estate Agent • Registered Property Valuer (VCZ)

Denford brings a uniquely interdisciplinary approach to business law – bridging legal strategy, financial acumen, and real estate expertise. As founder of DBA, he helps clients structure opportunities with a sharp eye on commercial viability and long-term value, drawing on nearly two decades of practice across the full property lifecycle: land acquisition, regulatory approvals, construction contracts, and final disposition.

His academic foundation reflects this interdisciplinary commitment. An LLB (Honours) and BSc (Honours) in Economics, complemented by an MBA specialising in Finance, means that when Denford reviews a transaction, he simultaneously examines its legal structure, financial architecture, and commercial logic.

What further distinguishes him within Zimbabwe's property sector is his dual registration as a Registered Estate Agent with the Estate Agents Council and a registered Property Valuer with the Valuers Council of Zimbabwe – credentials that reflect active, operational knowledge of how properties are priced, marketed, and transferred. For clients, this means engaging a legal adviser who understands not just the contract, but the asset dynamics.

Denford also teaches Real Estate Law at the Real Estate Institute of Zimbabwe (REIZ), keeping him at the forefront of legislative and regulatory developments while contributing to the profession's standards. A broader qualification portfolio spanning property development compliance, construction management, and project finance extends his counsel from the boardroom to the building site.

Whether structuring a development joint venture, advising on a complex acquisition, or navigating a compliance challenge, his counsel is legally precise, commercially grounded, and calibrated to each client's specific objectives.

Memberships

Law society of Zimbabwe: Legal practitioner ,Conveyancer and Notary Public

International Bar Association

Registered Estate Agent: Estate Agents Council of Zimbabwe

Registered Valuer: Valuers Council of Zimbabwe

Associate: Real estate Institute of Zimbabwe (REIZ)

Our Team

Denford Business Attorneys operates on a collaborative team model designed to deliver responsive, well-rounded counsel across every matter. The firm's practice is supported by a cohesive group of lawyers, each contributing specialised expertise within our defined practice areas – ensuring that clients receive comprehensive, strategically informed advice grounded in collective experience rather than a single perspective.

Central to the firm's operational efficiency is a dedicated Practice Manager who oversees client relations, workflow management, and practice administration – ensuring every matter progresses with precision and that clients receive a consistently high standard of service from initial consultation through to resolution. This role forms the operational backbone of the firm, enabling the legal team to remain entirely focused on delivering exceptional outcomes.

Complementing the legal team is a skilled support structure responsible for research, documentation, and administrative coordination – handled with the same precision and professionalism the firm applies to its legal work. This integrated approach ensures that no detail is overlooked and that clients experience seamless communication and timely engagement at every stage of their matter.

Together, this structure enables Denford Business Attorneys to offer the depth and responsiveness of a larger practice while preserving the personalised attention and direct accessibility that distinguish the firm. Every member of the team is united by a shared commitment to excellence, integrity, and innovation – values that are reflected not only in the firm's culture, but in the quality of counsel delivered to every client.

DBA attaches great importance to professional development and the teams' continued legal training. As the legal landscape is ever changing, we strive to keep abreast of these developments by ensuring that our lawyers and support staff are up to date with current practice. We practice a well-developed and holistic system of continued learning that allows our professionals to proudly stand at the forefront of our specialist practice.

Let's Build Value Together...

Ready to Protect, Structure, and Grow Your Real Estate Interests?"

Book your Strategic Consultation

Denford Business Attorneys
Harare North Area, Harare, Zimbabwe
[Website URL] | [Email Address] | [Phone Number]

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